

TITLE 475 - SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

CHAPTER 5 - ELECTRONIC BENEFITS TRANSFER CARD ISSUANCE AND ACCOUNTABILITY

001. CARD ISSUANCE REQUIREMENTS. At initial application, an Electronic Benefits Card will be sent to the household. The cards are sent in the United States mail. Individuals without a mailing address may receive their cards at a local office. The household will not receive any funds on the card until the household is certified.

001.01 TIME STANDARDS FOR BENEFIT AVAILABILITY. The following standards apply to Supplemental Nutrition Assistance Program benefit availability for eligible households.

001.01(A) INITIAL CERTIFICATION. No later than 30 calendar days after a household or its representative files an application:

- (1) A household's eligibility will be determined; and
- (2) An eligible household will receive an Electronic Benefit Transfer card; and
- (3) An eligible household will have funds available on its card.

001.01(A)(i) ELECTRONIC BENEFITS TRANSFER CARD MAILING TIME. The 30-day time limit includes allowing a household time to receive its Electronic Benefit Transfer card.

001.01(B) RECERTIFICATION. When the Department receives an application for recertification on or before the 15th day of the last month of the certification period, the application process is completed before the end of the household's current certification period. When the Department receives an application for recertification after the 15th day but before the 30th day after the last day of the certification period, the application process is completed within 30 days of receiving the application.

001.01(C) SUPPLEMENTAL BENEFITS. Households that report the addition of a household member or a decrease in total gross income of \$50 or more are entitled to an increase in Supplemental Nutrition Assistance Program benefits the month following the month of report when the information is verified timely. When the additional benefits cannot be included in the regular issuance for the following month the household is provided supplemental program benefits by the tenth day of the month following the month in which the change was reported.

002. REPLACEMENTS.

002.01 ELECTRONIC BENEFIT TRANSFER CARD REPLACEMENTS. The household is responsible for notifying the Department or the Electronic

Benefit Transfer card contractor as soon as possible when a card is lost, stolen or damaged. Electronic Benefit Transfer cards will be replaced within five days following the request of replacement by the household.

002.02 BENEFIT REPLACEMENT. A household must report a lost or stolen card immediately. When reported, an immediate hold will be placed on the account and no further benefits can be accessed with that card. At the time of report, the household can request a replacement card. No benefits will be replaced. Benefits that remained on the card at the time it was reported as lost or stolen will be transferred to the new card.

002.03 FOOD DESTROYED IN A DISASTER. In cases when food purchased with Electronic Benefit Transfer benefits is destroyed in a disaster affecting a participating household, that household may be eligible for the replacement of the actual value of loss, not to exceed the household's one month allotment. The loss must be reported within ten days of the occurrence and the household's disaster must be verified.

002.03(A) HOUSEHOLD STATEMENT OF LOSS. Prior to issuing a replacement, the recipient must provide the Department a signed statement attesting to the household's loss from the household. The statement must be received within 10 days of the date of report. If the 10th day falls on a weekend or holiday and the statement is received the day after the weekend or holiday then the request will still be considered received timely.

002.03(B) DISASTER REPLACEMENT ELIGIBILITY. This policy applies in cases of natural disasters affecting more than one household, as well as individual household disasters, such as fire, or power outage lasting more than four hours for refrigerated food or twenty-four hours for frozen food. There is no limit on the number of replacements for food purchased with Supplemental Nutrition Assistance Program benefits which were destroyed in a household misfortune.

003. ELECTRONIC BENEFIT TRANSFER ACCOUNT AGING. Account aging occurs when a household has not used the benefits in their Electronic Benefit Transfer account.

003.01 INACTIVE ELECTRONIC BENEFIT TRANSFER ACCOUNT. An inactive account is an account that has not had a debit transaction in the past 365 days. The household will continue to have access to all benefits remaining in their Electronic Benefit Transfer account until the benefits are expunged from the account.

003.01(A) EXPUNGED ELECTRONIC BENEFIT TRANSFER ACCOUNT. An expunged account is an account that is inactive. The Issuance and Collection Center can apply any expunged benefits to any outstanding Accounts Receivable the household may have.

003.02 DORMANT ELECTRONIC BENEFIT TRANSFER ACCOUNT. A dormant account is an account that has not had a debit transaction in the past 90 days. The household will continue to have access to all benefits remaining in

their Electronic Benefit Transfer account.

003.02(A) DORMANT ELECTRONIC BENEFIT TRANSFER ACCOUNT

BENEFITS. Dormant account benefits can be applied to any outstanding Accounts Receivable an adult household member may have following appropriate notice.

004. ELECTRONIC BENEFIT TRANSFER BENEFIT ADJUSTMENTS. If a system error occurs when the household is using its Electronic Benefit Transfer card at an authorized retailer, the household's Electronic Benefit Transfer card will be corrected through an adjustment process. These adjustments may occur after the benefit availability date and may result in either a debit or credit to the household.

004.01 HOUSEHOLD-INITIATED ADJUSTMENTS. Households have 90 calendar days from the date of the error to initiate a correction request claim. Household-initiated credit adjustments must be adjudicated and processed within 15 calendar days from the date the household reports the error. This timeframe also applies if the Department or entity other than the household discovers a system error that requires a credit adjustment to the household.

004.02 RETAILER-INITIATED ADJUSTMENTS. Retailers have nine calendar days from the original date of a system error to identify the error. Retailers must submit the correction request to the issuer and request that an adjustment be processed against the cardholder's account.

(A) A notice will be sent to the household upon receipt of the notification and data pertaining to the requested adjustment from the Electronic Benefit Transfer Claim Tracking System through the Electronic Benefit Transfer contractor. The household's notice must provide specific detailed information about the error transaction and must advise the household of the right to a fair hearing.

(B) No hold will be placed on the account balance for the amount of the adjustment.

(C) If the household disputes the requested adjustment and requests a fair hearing within the 15 calendar day timeframe, no further action would be taken to debit the household's account until the fair hearing decision is rendered.

(i) If the fair hearing decision is rendered in the household's favor, no further action is needed.

(ii) If the decision is rendered in favor of the State Agency, collection activity will begin immediately against the current account balance. The contractor will reopen the claim and will attempt daily to make the adjustment. No debit adjustment will occur unless the account has sufficient balance to complete the total amount of the adjustment by the end of the next calendar month. Nebraska will not settle partial adjustments.

(D) If the household does not request a fair hearing within 15 calendar days, the system will automatically begin the collection process upon expiration of that time period. If the account does not contain sufficient funds to cover the entire debit adjustment amount, the system will attempt daily to make the adjustment until the end of the next calendar month. No debit adjustment will occur unless the account contains sufficient balance for the total amount of the adjustment. The Department will not settle partial adjustments.

